

TRICKY CONTRACT #4: UNCAPPED INDEMNITY & COMPUTER AUDIT

VENDOR SERVICES AGREEMENT & INDEMNITY GUARANTEE

CLAUSE 1. UNCAPPED INDEMNIFICATION & LEGAL FEES

Vendor shall indemnify, defend, and hold harmless Client, its parent corporation, subsidiaries, officers, directors, employees, and customers from and against any and all claims, liabilities, lawsuits, judgments, losses, costs, expenses, and legal fees (including attorney fees) arising out of or related to the services provided by Vendor. Vendor agrees to accept full, uncapped financial liability without limitation.

CLAUSE 2. WAIVER OF LIABILITY CAPS

Both parties agree that statutory limits, consequential damage waivers, and liability caps shall not apply to Vendor under this Agreement. Vendor's personal assets, business insurance, and revenue shall be fully accessible to satisfy any claim or judgment.

CLAUSE 3. PERSONAL COMPUTER & FINANCIAL AUDIT RIGHTS

Client reserves the right, upon 24 hours written notice, to audit Vendor's internal accounting ledgers, bank statements, personal computer file systems, and hard drives to verify compliance with confidentiality obligations and hours billed.

CLAUSE 4. GOVERNING LAW & REMOTE JURISDICTION

This Agreement shall be governed exclusively by the laws of the State of Delaware. Any dispute, arbitration, or litigation must be brought in the courts of Wilmington, Delaware. Vendor agrees to reimburse Client for all attorney fees and court costs incurred by Client in any legal proceeding.